ALEX NORBERT MURONYENI
and
IZEKIEL KARIMANZIRA
and
LORRISTONE KAPAMARA
and
STEN MUTAZU
and
REGIS BABIYONDA KUMIRE
and
TENDAI NYAMADZAWO
versus
COLLEN GWARAZIMBA
and
FOGI NCUBE
and
HILDA TSIGA
and
THEODORA SEMWAYO
and
CHIPO BEATA MLILO
and
DOUGLAS NYENGERA
and
WILLIAM CHIBVURI
and
CARBO MBEREKO
and
BETTY MASAMBA
and
ANNATOLIA NYENGERA
and
MERCY CHIBVURI
and
BEAUTY MBEREKO
and
DARLINGTON NYENGERA
and
TENDAI MKWELA
and
TRACY MKWELA
and
SANDY GEZANA
and

SIBUSISIWE HAKATA
and
COURAGE MASAMBA
and
FORTUNATE MASAMBA
and
TERRENCE NYENGERA
and
SHELTER CHIWASHIRA
and
LOISE MUKOMBE
and
SARAH KANOKORA
and
TAFADZWA NYENGERA
and
TINOTENDA MUNENGE
and
SARAH SEMWAYO
and
TENDAI CHIMFOMBO
and
ARETHA MANYERE
and
RUTH KANOKORA
and
BILHA NYENGERA
and
DEBORAH CHIBVURI
and
CRISPUS MASAMBA
and
MIRRIAM NCUBE
and
PENNINA NCUBE
and
HODESH NYENGERA
and
DANAISHE KANENGONI
and
JAMES GEZANA
and
DEMETRIO NGUNDU
and

KELVIN KANOKORA
and
ENOCK NCUBE
and
THE CHURCH OF THE ASSEMBLY OF JESUS MESSIAH GLOBAL PILGRIMAGE

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 5 & 13 March 2026

Chamber Application

B Mudhau, for the applicants
K Gama, for the respondents

DEMBURE J: This is an opposed chamber application for condonation for non-compliance with Order 31 rule 1(1) of the Magistrates Court (Civil) Rules, 2019 and extension of time within which to note an appeal in terms of rule 60(1) of the High Court Rules, 2021. On 5 March 2025, I heard the application and reserved judgment *sine die*.

FACTUAL BACKGROUND

The Church of the Assembly of Jesus Messiah Global Pilgrimage, the 41st respondent, is governed by a Constitution dated 18 January 1994. In terms of article 14.1 as read with article 12(a) of the Church's Constitution, the affairs of the Church are managed and run by a Mother Board. The last appointment of Board members was made in 2005. The parties have been haggling over the running of the affairs of the Church, in particular, the contention was that the applicants were unlawfully conducting the affairs of the Church as members of the Mother Board.

On 2 September 2024, the now respondents filed an application in the court *a quo* seeking an order prohibiting the now applicants from acting in any manner as members of the Church's Mother Board. It was argued then that the second and third respondents therein, Alex Muronyeni and Izekiel Karimanzira respectively, were removed from being board members but had unlawfully remained in office, and that one Chiravirwa Manyere had also resigned on 18

July 2024. As a result, the board members were now short of the minimum number of members of the Mother Board as required by Article 14.2 of the Church's Constitution. It was contended that their actions were, therefore, unlawful.

The application was opposed by the now applicants. In their opposing affidavit, they raised points *in limine*, namely that of the special plea of *lis pendens*; that the applicants then were approbating and reprobating and that the applicants' claim had prescribed. In the heads of argument, they further raised a preliminary issue that there were material disputes of fact incapable of resolution without the parties leading *viva voce* evidence. They contended that the second and third respondents were never removed from the Mother Board, as there was no resolution of the Mother Board to that effect. They argued that there was a material dispute of fact as the said respondents were not removed from the board.

The other contention raised was that Mr Manyere did not resign from the board, as no communication was made to the board to that effect. They further contended that their terms of office would only lapse on the election or appointment of new office bearers at the annual assembly meeting, which meeting was to take place on 5 October 2024. They denied the allegations that they had violated any provisions of the Constitution.

On 8 October 2024, the court *a quo* handed down its judgment in terms of which it granted a prohibitory interdict against the now applicants, prohibiting them from acting in any manner as members of the 41st respondent's Mother Board.

It is common cause that on 6 November 2024, the applicants lodged an appeal in this court after being aggrieved by the judgment of the Magistrates' Court under Case No. HCH 4938/24. The appeal was heard on 23 January 2025 before DUBE JP and FOROMA J. The respondents raised a point *in limine* that the appeal was a nullity on the basis that the grounds of appeal did not comply with the court rules. In particular, it was argued that the grounds of appeal were not clear and concise and, accordingly, invalid. The applicant's counsel conceded that ground 3 was invalid but argued that the other grounds were valid. The court reserved its judgment on the point *in limine sine die*. The judgment was handed down on 30 September 2025 as number HH 579/25. The judgment was stamped 3 October 2025 by the Registrar.

In the judgment, the court upheld the preliminary point that the grounds of appeal were not clear and concise and were, accordingly, invalid. The appeal was struck off the roll with costs.

The applicants approached this court seeking condonation for non-compliance with the rules and extension of time to note an appeal on 11 November 2025. It was averred that the delay, taking into account the circumstances, was not inordinate, that there was a reasonable explanation for the delay, that there would be no prejudice to be suffered by the respondents if the application is granted and that the applicants have prospects of success on appeal. The applicants also related to the requirement for finality to litigation and the importance of the case and avoidance of unnecessary delays in the administration of justice. It contended that it was in the interests of justice that the application ought to be granted.

In their opposing papers, the respondents contended that the delay of one year and one month was inordinate and unpardonable. It was also contended that there was no affidavit of the legal practitioner filed to explain why he did not file a valid notice of appeal. They further stated that the applicants should have withdrawn their defective appeal rather than waiting for the judgment of the court. It was also argued that there was no reasonable explanation for the further delay after the court judgment of one month and eleven days. On the prospects of success, it was contended that the intended appeal had absolutely no prospects of success. It was argued that *lis pendens* is not a defence at all. They further contended that the appeal did not challenge the court *a quo*'s reasons for the judgment.

The respondents also attached the affidavit of Mr Manyere giving evidence on the resignation. I must state in passing that it is trite that an appeal is based on the record; See *Reserve Bank of Zimbabwe v Granger and Anor* SC 34/01. Accordingly, in determining whether there are prospects of success on appeal, I am restricted to the record of proceedings from the court *a quo*. The attempts by the respondents to smuggle new evidence before me must be rejected. That affidavit shall not be considered.

It was also averred by the respondents that they would suffer serious prejudice because there is a Mother Board which was elected and is lawfully in office. The prayer was for the application to be dismissed with costs on a legal practitioner and client scale. In the answering

affidavit, the applicants maintained that it was in the interests of justice that the application ought to be granted. At the hearing, the parties made the following submissions:

ORAL SUBMISSIONS

SUBMISSIONS FOR THE APPLICANTS

Mr *Mudhau* submitted that, by and large, he would abide by the applicants' heads of argument filed of record. He emphasised that even though a considerable time had lapsed, there was a reasonable explanation for the delay. He conceded that the delay was inordinate. Counsel argued that the date when the appeal was struck off the roll is what is critical for consideration. That the appeal was filed on the due date was not in dispute. The explanation given for the delay after the appeal was struck off was plausible. The factors must be considered cumulatively. That the delay is long is not in itself a reason to dismiss the application. See *Cordier* v *Cordier* 1984 (4) SA 524 (C) at 528I-529B. The rule is that if a delay is inordinate, it is compensated for by the explanation given. The condonation arose after the court had pronounced its judgment related to the appeal. A weak explanation can be compensated for by strong prospects of success.

Counsel further argued that the first point relates to the court *a quo*'s failure to determine the special plea of *lis pendens* and that there were material disputes of fact as to whether Mr Manyere had resigned. The court ought to have rendered a decision. A resignation takes effect upon communication to the other party. It was also submitted that the third ground of appeal touches on the *ratio* of the court *a quo*'s decision. That it was not correct that the applicants were acting unlawfully. The Constitution of the 41st respondent is clear that the term of office comes to an end when a newly elected executive comes in. The position of the court *a quo* was not supported by the Constitution and the common law. As there was no election of new members, the applicants remained in office and cannot be interdicted. An interdict cannot be used against lawful activities. See *Mayor Logistics (Pvt) Ltd* v *Zimbabwe Revenue Authority* CCZ 07/14.

It was also submitted that the interdict of the applicants had paralysed the operations of the Church. Counsel argued that the order was granted after a certain legal act had been done. The interdict sought to stop the annual conference. The court was advised of the impending annual conference. The judgment cannot be allowed to stand as it has become moot. It further contended that there was the leading of new evidence by Mr Manyere. The affidavit by Mr

Manyere cannot be entertained as it should have been done in the court *a quo*. Mr *Mudhau* further argued that there was prejudice to the applicants. They were given a new mandate on 5 October 2025. As long as that judgment remains, the applicants have been paralysed in their operations. An appropriate order of costs can compensate the respondents. It was his position that it was in the interests of justice that the application be granted.

SUBMISSIONS FOR THE RESPONDENTS

Conversely, Mr *Gama* submitted that the application was opposed on five (5) grounds; that the delay in seeking the indulgence of the court was inordinate; that the applicants had not tendered a reasonable explanation for the inordinate delay; that the applicants had lied to the court and the effect of a lie is to non-suit a litigant who lied; that there were absolutely no prospects of the intended appeal to succeed and that contrary to rule 95(9) of the High Court Rules, the applicants had not shown special circumstances which require the court to grant the indulgence sought. It was argued that in *Gondo* v *Nhowe* HH 727/22, MUCHAWA J held that the rules under rule 95 apply to appeals from the Magistrates Court. The applicants rely on the wrong rule. The appropriate rule is rule 95(9). The requirements set out in that rule have not been satisfied.

Counsel further argued that in explaining the delay in acting, the applicants openly lied to the court. At p 23, the averment made in para 83 was that the applicants instructed counsel to draft the application for condonation. The averment was put in issue in the opposing affidavit. As can be seen at p 7, the application was prepared not by counsel but by the applicants' legal practitioners. In their heads of argument, they now say the application was prepared by their legal practitioners. It was absurd to engage counsel to file an application for condonation. On the effect of a lie, he referred me to the case of *Jambo* v *Church for the Province of Central Africa & Ors* HH 329/13. The court said this was highlighted in the case of *Leader Trade (Pvt) Ltd* v *Smith* HH 131/03 that where an applicant gives false evidence, then the application must be dismissed. See also *Manjala* v *Maposa* SC 18/16, *The Sheriff for Zimbabwe & Anor* v *Nyakoya* HH 667/22.

Mr *Gama* went on to submit that it is trite that where the default in question resulted in the failure to comply with the rules, there must be an affidavit from the legal practitioner to

explain that. See *Ndlovu* v *Guardforce Investments (Pvt) Ltd & Ors* 2014 (1) ZLR 25 (H) at 25 D-F; *KM Auctions (Pvt) Ltd* v *Samuel & Anor* SC 15/ 12. There is no affidavit by any lawyer taking responsibility for the default and explaining the delay. Lawyers must be familiar with the court rules. See *Selk Enterprises (Pvt) Ltd* v *Oliver Hunungwe Chimenya & Ors* SC-10/03, where the Supreme Court held that the failure by a legal practitioner to comply with the rules of court is never a reasonable explanation for non-compliance with the rules. The approach was casual. The applicants have completely failed to explain the delay, which is admittedly inordinate. The notice of appeal was struck off on 30 September 2025, but they applied one month and 11 days later. This is a fragrant disregard of the rules. That is totally unacceptable. By lying and flagrantly breaching the rules, the application must be dismissed.

It was also argued that the reason for the court *a quo*'s decision was that the applicants had violated the Constitution. They violated Article 14.2, a peremptory provision that there shall be no less than 7 and no more than 12 members of the Mother Board. Mr Manyere was not part of the board. It was common cause that he resigned on 18 July 2024. That reduced the number to 6. What the board was doing was now illegal, and the court was entitled to interdict the applicants. No election was ever held, and there was breach of Article 10.2. The last infraction was the violation of articles 14.1 and 14.7. The Mother Board must be chaired by the Overseer, and they did not have an Overseer. The court *a quo* cannot be faulted for granting an interdict when the applicants had violated the Constitution.

Counsel further submitted that the court should also take judicial notice that the matter alleged to be pending was disposed of. He argued that the issue of a failure to give a decision is a ground of review. That there were material disputes of fact is not a point *in limine*. The court *a quo* held that the facts were common cause. The applicants must show special circumstances. There is a judgment which explains what special circumstances are. See *Muhammad Mansab* v *Muhammad Hanif* SCMR 60, by the Supreme Court of Pakistan. The application ought to be dismissed with costs on a legal practitioner and client scale because the applicants have lied to the court.

REPLYING SUBMISSIONS

In reply, Mr *Mudhau* argued that the allegation that the applicants lied is incorrect. The established rule is that a case falls or succeeds on its founding affidavit. If there is a conflict, you rely on the founding affidavit. It is only when the applicants made contradicting averments in their pleadings that it can be said they lied. There was reference to heads of argument at p 620. It is trite that heads of argument are not pleadings. See *Cargill Zimbabwe* v *Culvenham Trading (Pvt) Ltd* HH 42/06. The dispute between the parties is established in the pleadings. In *Ahmed* v *Docking Station Safaris (Pvt) Ltd t/a CC Sales* SC 70/18, it was held that if there are any other averments, one considers the founding affidavit. The fact that counsel made an allegation in the heads of argument is inconsequential.

Counsel also argued that the purported resignation was invalid as there was no valid notice of resignation given. He argued that counsel for the respondents abandoned the argument on resignation. The argument about the Overseer being the chairman was not raised in the lower court. This court, when dealing with prospects of success, considers the record of the court *a quo*. Article 14.11 supports the applicants' argument that new members must have been elected. The point in limine of *lis pendens* was not dealt with. The case of *Gwaradzimba N.O* v *C.J Petron & Company (Proprietary) Limited* 2016 (1) ZLR 28 (S) is very clear that the court must give its decision. In *Watchtower Bible & Tract Society of Pennsylvania & Anor* v *Drum Investments (Pvt) Ltd & Anor* 1993 (2) ZLR 67 (S), the judgment defines 3 categories of an appeal; the third category is a review, which relates to whether the court exercised its power properly. The failure to deal with questions is an issue that can be dealt with in an appeal. The *Gwaradzimba N.O* case is an example.

It was also submitted that the Pakistan Supreme Court in the *Muhammad Mansab* case was interpreting the rules of that court. Rule 95 does not place any obligation on what other factors are required outside the standard requirements. An appeal from the Magistrates Court is dealt with in the Magistrates Court Rules. There is nowhere the application is stated to be under rule 95. It can be made in terms of the common law. MUCHAWA J in *Gondo* v *Nhowe* did not deal with the proposition proffered. It is distinguishable. The application ought to be granted.

THE ISSUE FOR DETERMINATION

WHETHER THE REQUIREMENTS FOR CONDONATION HAVE BEEN SATISFIED

THE LAW

It is trite elementary law that condonation is an indulgence the grant of which is within the discretion of the court. Condonation is, however, not granted by the mere asking. The court exercises its discretion judiciously, considering well-established factors. These factors are:

(a) that the delay involved was not inordinate, having regard to the circumstances of the case;

(b) that there is a reasonable explanation for the delay;

(c) that the prospects of success should the application be granted are good; and

(d) the possible prejudice to the other party should the application be granted.

See *Forestry Commission* v *Moyo* 1997 (1) ZLR 254 (S) at 259. In *Friendship* v *Cargo Carriers Ltd & Anor* SC 01/13, it was held that:

> "Condonation is an indulgence which may be granted at the discretion of the court. It is not a right obtainable on demand. The applicant must satisfy the court/judge that there are compelling circumstances which would justify a finding in his favour. To that end, it is imperative that an applicant for condonation be candid and honest with the court. Certain criteria have been laid down for consideration by a court/judge in order to assist it in the exercise of its discretion. Among these are, the extent of the delay and the reasonableness of the explanation therefor, the prospects of success on appeal, the interest of the court in the finality of judgments and the prejudice to the party who is unable to execute his judgment. The list is not exhaustive."

It is also settled that the above factors must not be considered in isolation but cumulatively and in the context of the whole application, bearing in mind the need to do justice. Accordingly, an unacceptable explanation may be complemented by strong prospects of success. See *Mupindu & Anor* v *Mupindu & Ors* SC 115/25 at p 6, where UCHENA JA said:

> "While its grant recognises that a breach of the rules has occurred, it permits the infraction to be excused where fairness and justice so demand. To obtain it, the applicant must fully account for the delay, furnish a candid and satisfactory explanation for the default and establish that the intended appeal carries some measure of merit. **Notably, the law does not approach these requirements in isolation. They are considered cumulatively and complement each other in determining whether or not the application should be granted. A weak explanation may be redeemed by strong prospects of success, and conversely, strong prospects of success will not excuse a flagrant disregard of the rules. The exercise is therefore a delicate balancing act**." (*my emphasis*)

The above legal principles are what apply to the present application. Mr *Gama* argued that the applicants were required to show special circumstances for the extension of time to

appeal in terms of rule 95(9) of the High Court Rules. The relevant provisions of rule 95 state as follows:

> "**Miscellaneous appeals and reviews**
> 95. (1) **Subject to the provisions of subrule (2)** this Rule shall apply to any appeal to or any review by a judge or the court which is provided for in any enactment having the force of law in Zimbabwe.
> (2) **These rules shall not apply to**—
> (a) a review in terms of the Act; or
> (b) an automatic review or any other review not at the instance of an aggrieved person or party to the proceedings;
> (c) **an appeal** or review **in relation to which the enactment concerned itself expressly**
> (i) **specifies that it shall be by notice of motion or other special procedure**; or
> (ii) provides for the making of rules or regulations governing procedure;
> (d) an appeal or review in relation to which special rules made in terms of the Act are in force;
> (e) an appeal relating to bail in terms of section 112 of the Act and an appeal relating to bail in terms of section 16 of the Extradition of Offenders (Republic of South Africa) Act [*Chapter 61*].
> …
> (9) Save where it is expressly or by necessary implication prohibited by the enactment concerned, a judge may, **if special circumstances are shown, extend the time laid down, whether by subrule (8) or by the enactment concerned, for instituting an appeal** or review." (*my emphasis*)

It is clear from a reading of subrule (2) of rule 95 that the provisions relating to miscellaneous appeals do not apply to an appeal or review in relation to which an enactment expressly specifies that it shall be by way of notice of motion or other special procedure. This is what r 95(2)(c)(i) provides. The enactment which provides the special procedure for a civil appeal from the Magistrates Court is the Magistrates Court (Civil) Rules, 2019. Under Order 31, the manner in which a civil appeal from the Magistrates Court should be noted in the High Court, the requirements of the notice of appeal and other related matters for such an appeal are provided for. Accordingly, that appeal does not fall under the category of miscellaneous appeals provided for under rule 95. To the extent that the special procedure for the intended appeal is provided for in the Magistrates Court (Civil) Rules, it cannot correctly be argued that rule 95(9) applies. That subrule does not apply to an appeal the applicants intend to file.

While Mr *Gama* had argued that MUCHAWA J in *Gondo* v *Nhowe* (*supra*) held that rule 95(9) applies to civil appeals from the Magistrates Court, I did not find such a proposition in that judgment. The court never made such a finding. In fact, it was simply one of Mr *Gama*'s

arguments in that case, but the court did not relate to that legal issue, as it was never an issue for the court to determine. There is absolutely nothing in that judgment to support Mr *Gama*'s argument. I find his argument to be misleading and, in any case, erroneous. The clear provisions of rule 95(2) cannot support such a position. The argument that the intended appeal is governed by r 95 is at odds with the law. To that end, the sentiments expressed by the Pakistan Supreme Court in the *Muhammad Mansab* case cited by Mr *Gama* are completely irrelevant. There is, therefore, no *onus* on the applicants to show special circumstances. In an application for condonation the *onus* is on the applicants to show good and sufficient cause and in considering whether that has been discharged the court consider the well-established standard factors or requirements as set out in the various cases such as *inter alia*; *Forestry Commission*, *Mupindu*, *Friendship* (*supra*) including the case of *Jockstar Investments (Pvt) Ltd* v *Dzumbira & Anor* SC 104/25 at p 8. I will now turn to consider the relevant factors thereof.

APPLICATION OF THE LAW TO THE FACTS

EXTENT OF THE DELAY

There was no dispute that the applicants were required to file their appeal within 21 days after the judgment was handed down. That period lapsed on 6 November 2024. The applicants did not file a valid appeal within that period and approached this court for condonation and extension of time on 11 November 2025. The delay was for about one (1) year and five (5) days. In the circumstances, the delay is without doubt inordinate. Mr *Mudhau* conceded that the delay was excessive as he accepted that it was considerably long. That is not the end of the matter, as I must still consider the other factors.

EXPLANATION FOR THE DELAY

The applicant must proffer a reasonable or acceptable explanation for the delay. This was affirmed in the *Jockstar Investments* case (*supra*) at p. 8, where the court stated as follows:

> "An applicant must provide an acceptable explanation for the non-compliance. As stated in *Zimslate Quartzite (Pvt) Ltd & Ors* v *Central African Building Society* SC 34/17 at p 7:
>
> > "An applicant, who infringes the rules of the court before which he appears, must apply for condonation and in that application explain the reasons for the infraction. He must take the court into his confidence and give an honest account of his default in order to enable the court to arrive at a decision as to whether to grant the indulgence sought. An

> applicant who takes the attitude that indulgences, including that of condonation, are there for the asking does himself a disservice as he takes the risk of having his application dismissed."

It is, therefore, settled that the applicant is required to give a full and candid account of the default. An explanation that is based on positive falsehoods is no explanation at all. The court may dismiss the application on that basis. In other words, the court cannot reward dishonesty. In such instances, the court may treat the applicant as if he had not given any evidence at all once it is shown that, in respect of material facts, the applicant deliberately lied or gave false evidence. This position was further restated in See *Matsika & Anor* v *Chingwena & Ors* SC 144/21 at p 10, BHUNU JA said:

> "[26] **These examples of the 1st applicant's shenanigans portray him as a dishonest devious person who is prepared to twist the truth in order to advance his nefarious cause. In light of his deceitful character the learned judge *a quo* cannot be faulted for holding that the 1st respondent's cause was founded on lies** and fraudulent documents. That finding is amply supported by the evidence on record. For that reason, the learned judge *a quo's* reliance on the dictum of NDOU J in *Leader Tread Zimbabwe (Pvt) Ltd* v *Smith* [HB 131/03] is apt. In that case, the learned judge observed that:
>
> > "**It is trite that if a litigant has given false evidence his story will be discarded and the same adverse inference may be drawn as if he has not given evidence at all**.- see *Tumahole Bereng v R [1949] AC 253* and *South African Law of Evidence* IH Hoffman and DT Zeffert (3rd ed) at page 472, if he lies about a particular incident, the court may infer that there is something about it which he wishes to hide".
>
> [27] **This should really be the end of the matter as the 1st applicant has proven to be an unworthy dishonest litigant**. For the sake of completeness, I, however, feel constrained to briefly deal with his other complaint that after finding that the 1st applicant had no *locus standi* the court *a quo* ought to have struck the matter off the roll instead of dismissing it." (*my emphasis*)

The above position was also endorsed in *Chimbandi* v *Mabel Canvas (Pvt) Ltd* SC 68/22, where the Supreme Court stated that:

> "[17] **At the onset of argument counsel for the appellant made the inescapable fatal admission that appellant was in fact dishonest to the court *a quo* when she denied liability to the respondent. What this means is that the appellant's entire pleadings are prone to being founded on lies and deceit.**
>
> [18] Given the appellant's admitted devious and unworthy demeanour, counsel for the appellant was unable to give any coherent answer as to why the court *a quo* should have believed her on any other aspect of her defence. **It is trite that a litigant who is shown to have told a lie in court may also be considered unworthy of belief on any other contentious issues. The court *a quo's* finding in this respect is beyond reproach.**" (*my emphasis*)

In *casu*, Mr *Gama* argued that the applicants had lied and, therefore, the application ought to be dismissed. The argument was premised on what was stated in para 83 of the founding affidavit, vis-à-vis the averments in the applicant's heads of argument at p 620 of the record. By taking that approach, the argument was ill-founded. It is trite that heads of argument are not pleadings as they constitute the opinion of counsel on the law. See *Cargil Zimbabwe* (*supra*) and *Brooker v Mudhanda & Anor; Pirece v Mudhanda & Anor* SC 05/18 at p 17. The fact that counsel made some factual averments in the heads of argument is inconsequential. I must dispose of an application on the basis of the founding affidavit. It is well-established that an application stands or falls on its founding affidavit. See *Ahmed v Docking Station Safaris* (*supra*) at p 3.

In the applicants' founding affidavit, particularly para 83, it was stated as follows:

> "After the counsel rendered his opinion, we convened with our legal practitioner on the 4th of November 2025 during the evening. We thereafter instructed our legal practitioner to give counsel instructions to draft the present application on the same date. The above is the explanation why the present application was filed on this date."

What is apparent from the above is that the applicants instructed their legal practitioner to give counsel instructions to draft the application. That statement does not say that the application was filed by the alleged counsel. At p 7 of the record, indeed, is the signed page of the notice of motion, which shows that it was signed and filed by the applicants' legal practitioners. The words "draft" and "file" do not mean the same thing. It cannot be said that the applicants deliberately lied by saying they gave instructions to their legal practitioner for him to give instructions to counsel to draft the present application. Mr *Gama*'s argument seems to be based on an assumption that since the application was filed by the applicants' legal practitioners, there was no hand of the alleged counsel in the drafting of the papers themselves. The court cannot accept serious allegations relating to dishonesty whose effect is fatal to an application simply based on assumptions. It was not established that the applicants gave false evidence. I, therefore, reject the argument that I should adopt the approach taken in the *Matsika* and *Munjala* cases (*supra*) in this case.

I also do not agree that the delay was largely blamed on the legal practitioners, necessitating the filing of an affidavit by the legal practitioner. It is trite that where the blame for

the non-compliance or the delay is largely that of the legal practitioner, generally a confirming affidavit must be filed by the legal practitioner to explain the delay or else the explanation would be unacceptable. See the cases of *KM Auctions* and *Jockstar Investments* (*supra*). I must say that each case must be treated depending on its own circumstances.

In this case, it is clear that the delay was mainly caused by the delay in the judicial proceedings themselves, wherein judgment was also delayed for about eight months. If one looks at the fact that applicants had acted timeously by lodging their 'appeal' on 6 November 2024, it was then heard on 23 January 2025. That was a delay not attributable to the applicants of about two months and 17 days. After the arguments, the court reserved the judgment *sine die*, and the judgment was handed down about 8 months and 7 days later. Overall, the delay occasioned by the judicial process itself was for about 10 months and 24 days. In these circumstances, it cannot be said that the applicants sat on their laurels. They prosecuted their case with vigour and were desirous of pursuing their 'appeal'. I am not persuaded that simply because their counsel had conceded that ground 3 was invalid, they ought to have withdrawn the purported appeal. They still believed that the other grounds were valid and litigants should not be banished for pursuing a genuine argument unless it was one that was frivolous or vexatious. It was not shown that the pursuit of their case was reckless. The court came up with its own opinion after reserving its judgment for about 8 months. If the court believed that the grounds were utterly indefensible, it would have expressed such a position in the judgment itself.

There was nothing to suggest any gross negligence on the part of the legal practitioners that could be deduced from the judgment. I do not see the reason in these circumstances to demand that the legal practitioner explain why he filed an appeal that turned out to be fatally defective. The court can take an opinion on the validity of a notice of appeal, even one drafted by the most astute legal practitioner. In any case, the court may only punish litigants for the sins of their legal practitioners, if any, once their conduct is gross and unpardonable. Thus, BHUNU JA in *Monochrome (Pvt) Ltd* v *Kehrai Investments (Pvt) Ltd & Anor* SC 83/25 at p 2 held that:

> "The courts are generally loath to punish litigants for the sins of their lawyers **unless such conduct is gross and unpardonable**. **The courts and the ends of justice demand that whenever possible, justice be dispensed on the merits rather than on technicalities**. It is for this reason that I am inclined to hold that the explanation for delay is reasonable and excusable." (*my emphasis*)

This case is clearly distinguishable from the cases cited by Mr *Gama* and the other cases, such as the *United Refineries (Pvt) Ltd* v *Mining Industry Pension Fund* SC 63/14, whose circumstances demanded the filing of an affidavit of the legal practitioner responsible for the delay. In the current circumstances, where the delay was largely attributable to the long period it took for the court proceedings to terminate on 30 September 2025, having commenced on 6 November 2024, in my view, the explanation is reasonable and excusable. The applicants also further accounted for the delay in filing the application after the judgment was handed down on 30 September 2025. They stated that they only received the judgment on 6 October 2025 and went on to raise funds through the Church. They later managed to be briefed by their legal practitioner, who also sought an opinion of counsel. In the context of the greater period of delay being beyond their control, I do not accept that they further sat on their laurels or that the delay was unpardonable. There were no fragrant breaches of the rules to an extent that I must adopt the approach taken in the *Friendship v Cargo Carriers* case (*supra*). In that case, the Supreme Court made the following remarks:

> "In any event, it has been held that in cases of flagrant breaches of the Rules, especially where there is no acceptable explanation thereof the indulgence of condonation may be refused whatever the merits of the appeal are. This applies even where the blame lies solely with the attorney…"

To be flagrant, the behaviour must be found to be extremely bad and shocking, or the violation must border on recklessness or repeated failure to make reasonable efforts to ensure compliance with the rules. It cannot be said that the applicants flagrantly breached the rules. Their case is different. Their explanation for the delay is reasonable and excusable. Even if it is taken that the explanation was weak, the court may still consider the strong prospects of success on appeal to be complementary and consider granting the indulgence. I must, therefore, further consider the merits of the intended appeal.

THE PROSPECTS OF SUCCESS ON APPEAL

The consideration of this requirement does not call upon the court to determine the appeal itself. The court must consider whether the intended appeal is arguable or not hopeless. The prospects of success are not measured by the certainty of victory. There must be a reasonable likelihood that the appeal may be decided in favour of the applicants. The law was succinctly set

out in *Mlambo* v *Arosume Development (Pvt) Ltd & Ors* SC 35/23 at p 10, where MUSAKWA JA held that:

> "Prospects of success refer to the question of whether the applicants have an arguable case on appeal or whether the case cannot be categorised as hopeless.
>
> In the case of *Essop v S,* [2016] ZASCA 114, the Court, in defining prospects of success, held that;
>
> > "What the test for reasonable prospects of success postulates is a dispassionate decision, based on the facts and the law that a court of appeal could reasonably arrive at a conclusion different to that of the trial court. In order to succeed, therefore, the appellant must convince this court on proper grounds that he has prospects of success on appeal and that those prospects are not remote, but have a realistic chance of succeeding. More is required to be established than that there is a mere possibility of success, that the case is arguable on appeal or that the case cannot be categorised as hopeless. There must, in other words, be a sound, rational basis for the conclusion that there are prospects of success on appeal."

The applicants raised seven grounds of appeal in the draft notice of appeal. The first and second grounds relate to the failure by the court *a quo* to decide the two preliminary points raised before it. The first ground related to the point *in limine* of *lis alibi pendens*. It is trite that the special plea of *lis alibi pendens* is a dilatory plea. It is a defence, but if it is successfully raised, its invocation would, however, rest upon judicial discretion. See *Mhungu* v *Mtindi* 1986 (2) ZLR 171 (S). Before the court may invoke its discretion to either stay proceedings or proceed with the hearing, the requirements of the special plea must be satisfied. In *casu*, at p 3 of the judgment, the court *a quo* made some generalised statements as follows:

> "The Respondents raised points *in limine*. However, I believe the points *in limine* raised lack merit as they are not capable of disposing of the matter. It is trite that a plea of *lis pendens* does not bar the other court from proceedings with a matter placed before it."

The above cannot constitute a proper exercise of judicial power. Those statements do not constitute a determination of the preliminary points raised. It is clear that the court *a quo* refused to deal with the points *in limine,* including that of *lis pendens*. The law demands that the defence must be duly considered if it is applicable and, if so, the issue becomes whether to invoke the court's judicial discretion.

It is trite that a failure to determine an issue that is before the court is a misdirection. A judicial decision must be rendered on all points *in limine* raised. A failure to render a judicial decision is a proper and valid ground for an appeal. I do not agree, therefore, with Mr *Gama* that

this would constitute a ground of review only. While it is a gross irregularity, it can also constitute a proper ground of appeal that there was no proper exercise of judicial power warranting the intervention of the appellate court. This was confirmed in the *Gwaradzimba N.O* case (*supra*). In the appeal case of *Zimbabwe Nantong International* v *FBC Holdings & Anor* SC 84/25 at pp 9-10, MWAYERA JA had this to say:

> "**It is trite that a court is expected to determine all issues placed before it. This means that the court must address and make a decision on every pertinent issue presented to it by the parties. To that extent therefore the court's decision must reflect and state its findings on issues presented by the parties**. In *Nhimbe Fresh Export (Private) Limited* v *Prisma Packaging and Anor* SC 7/24, at p 7, GUVAVA JA made the following pertinent remarks:
>
> > "A court's determination must resolve the dispute between the parties. **Whether it be on a question of fact or law, a court must determine and inform the parties in clear terms how it has resolved the dispute. The need for a determination of all issues placed before a court can never be over emphasized**. (See *Fox & Carney P/L* v *Sibindi* 1989 (2) ZLR 173 at 179 G-H). **Failure by a court to make a judicial decision or determination indeed amounts to a misdirection on the part of the court which misdirection would warrant setting aside of proceedings and a remittal of the matter for a fresh hearing.**"
>
> 18. This Court, in *PG Industries (Zimbabwe) Ltd* v *Bvekerwa & Ors* 2016 (2) ZLR 14 (S) at p 18, stated the effect of the court's failure to determine an issue placed before it for determination, GOWORA JA, as she then was, stated as follows:
>
> > "The position is settled that where there is a dispute on a question, be it on a question of fact or point of law, there must be a judicial decision on the issue in dispute. The failure to resolve the dispute vitiates the order given at the end of the proceedings. Although the learned judge may have considered the question as to whether or not there was an irregularity in the citation of the employer, there was no determination on that issue. **In the circumstances, this amounts to an omission to consider and give reasons which is a gross irregularity**."
>
> See also *Nzara* v *Kashumba* 2018 (1) ZLR 194 (S) at 201 G – 202 B" (*my emphasis*)

The first ground is, therefore, arguable. The issue that the pending matter was disposed of may, of course, if established, render the issue no longer live for determination by the court *a quo*. It would be the court sitting to determine the appeal that may have to decide on the appropriate order to make in the circumstances.

I still believe that even if the first ground may not result in a live special plea still being there to argue, the second ground of appeal may also be dispositive of the appeal. The record is clear that the point of material disputes of fact was raised in the applicants' heads of argument. The law is clear that this can be raised as a point *in limine*. The court is also enjoined to consider

the point of law. A court's decision is expressed in the judgment. It cannot be implied that the court dealt with a point *in limine*.

The applicants raised a point that there were material disputes of fact incapable of resolution on the papers without *viva voce* evidence, in particular relating to whether Alex Muronyeni and Izekiel Karimanzira had been suspended and removed from the Mother Board and whether Chiravirwa Manyere had resigned from the Mother Board. The removal of the two and the resignation of Mr Manyere were all put in issue and controverted. The question was whether the court could give a ready answer from the papers without the aid of *viva voce* evidence. The pleadings and evidence, as amplified in the applicants' opposing affidavit, do not show that these facts were common cause. See para(s) 40-44 of their opposing papers before the court *a quo* at pp 221-222 of the record. In para 50 of the same opposing affidavit, it was also averred that Mr Manyere never resigned as the alleged letter of resignation was never served or communicated to the Mother Board. The issue of whether the letter was indeed served on the Mother Board loomed large, and the court *a quo* ought to have considered that question. It is trite that while a resignation is a unilateral act, it takes effect upon being communicated. See *Jakazi & Anor* v *The Anglican Church of the Province of Central Africa* SC 10/13. The affidavit of Mr Manyere placed before me was not before the court *a quo*. In these circumstances, the court *a quo* was required to render a decision on whether there were material disputes of fact or not. It could not refuse to entertain the point by simply saying that the point would not resolve the matter. On the second ground alone, which is dispositive of the appeal, the appeal is arguable.

Grounds 3 and 4 all relate to the principle that the court cannot interdict a lawful process. This is a settled legal principle. See *Mayor Logistics* (*supra*) at pp 8-9, MALABA DCJ (as he then was) remarked that:

> "It is axiomatic that the interdict is for the protection of an existing right. There has to be proof of the existence of a *prima facie* right. It is also axiomatic that the *prima facie* right is protected from unlawful conduct which is about to infringe it. An interdict cannot be granted against past invasions of a right nor can there be an interdict against lawful conduct. *Airfield Investments (Pvt) Ltd v Minister of Lands& Ors* 2004(1) ZLR 511(S); *Stauffer Chemicals v Monsato Company* 1988(1) SA 895; *Rudolph & Anor v Commissioner for Inland Revenue & Ors* 1994(3) SA 771."

Under their ground number 3, the applicants argued that the court *a quo* could not interdict them as they had lawfully remained in office until new board members were appointed.

This argument is clearly supported by Article 14.11 of the Constitution of the Church. It is also trite at common law that the term of office of office bearers only lapses upon the election of new office bearers. This principle was affirmed in *Chiangwa & Ors* v *Apostolic Faith Mission in Zimbabwe & Ors* SC 67/21, where KUDYA JA held as follows:

> "Again, the common law principle governing the expiration of fixed tenure of office bearers was settled in the cases of *Padayiche v Pavadai NO & Anor* 1994 (1) SA 662 (W) at 672G and *Ex parte United Party Club* 1930 WLD 277 at 281. **It is that the tenure of office of elected office bearers is not terminated by the effluxion of time but by the subsequent elections that are held for new office bearers."** (*my emphasis*)

It could be argued that the applicants, having been elected in 2005, remained lawfully in office until the election or appointment of new office bearers. The argument that they were now below the minimum number of 7 as required by Article 14.2 required that the point *in limine* that there were material disputes of fact as to whether the two members had been suspended and removed from office, and also whether Mr Manyere had resigned from the board, be resolved first. The allegation that there was no Overseer to act as Chairman of the Mother Board as required by Article 14.1 was not pleaded in the court *a quo*. Given the applicants' strong argument that they remained lawfully in office and were entitled to run the affairs of the Church as the Mother Board in terms of the Constitution, the argument that the court erred at law by granting a prohibitory interdict cannot, by any stretch of imagination, be taken to be hopeless. The grounds 3 and 4 are clearly arguable. They can also dispose of the appeal.

In my view, given my findings above, I do not think it is still necessary for me to look at the other grounds of appeal. From all those grounds that I have considered, I am satisfied that the applicants have reasonable prospects of success on appeal.

POSSIBLE PREJUDICE TO THE RESPONDENTS IF THE APPLICATION IS GRANTED

I do not perceive that there is any prejudice to the respondents that can be occasioned by the granting of the relief sought. In fact, the order would ensure that the parties' dispute is resolved on the merits once and for all. There is no doubt that the Church's operations have turned chaotic as the applicants also claim to have been re-elected at the annual assembly on 5 October 2025, while at the same time the respondents claim there is a proper authority in charge.

There is clearly need for the dispute to be finalised on the merits as it will help the organisation move forward.

Although the delay was inordinate, I find the explanation for the delay to be reasonable and excusable and coupled with good prospects of success on appeal, and that there is no possible prejudice to the respondents if the application is granted, it would be in the interests of justice that the application be granted. It must accordingly succeed. It would be a grave miscarriage of justice to shut the door on the applicants in the circumstances. They must be given the chance to be heard on the merits.

As regards costs, the applicants did not seek an order for costs. There is, therefore, reason to depart from the general rule that costs should follow the cause.

It is accordingly ordered that:

1. The application for condonation for non-compliance with Order 31 Rule 1(1) of the Magistrates Court (Civil) Rules, 2019 and for extension of time within which to file and serve a notice of appeal in terms of the said Rules be and is hereby granted.
2. The applicants be and are hereby granted an extension of time to file their notice of appeal within 5 days of this order.
3. There shall be no order as to costs.

DEMBURE J: ……..

Mabundu & Ndlovu Law Chambers, applicants' legal practitioners
Gama & Partners, respondents' legal practitioners